

Vijay Kumar Agrawal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 November 2022 · Writ-C No. 33180 of 2022 · WRIT - C No. 33180 of 2022 · **Writ dismissed; Clause 6.5 deposit condition stands; s.127 liberty**

HEADNOTE

Where the Executive Engineer has determined electricity dues under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and has already permitted interest to be deposited in instalments subject to first payment of the principal, the High Court will not, in writ jurisdiction, relax that principal-deposit condition. The chart appended to the Clause 6.5 order showed the provisional bill suffered from no error of law. Any remaining dispute may be taken in appeal under Section 127 of the Electricity Act, 2003. Writ petition dismissed.

FACTUAL SUMMARY

Vijay Kumar Agrawal challenged the Executive Engineer's order dated 27 September 2022 under Clause 6.5 of the U.P. Electricity Supply Code, 2005, determining electricity dues after litigation since 2018. He was willing to pay the determined amount but asked the High Court to relax the condition that the entire principal of Rs 1,97,830.94 be deposited first. The Executive Engineer had already allowed interest of Rs 2,15,135 to be paid in six instalments, subject to that principal deposit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

no writ relaxation of Clause 6.5 principal-deposit condition

HOLDING

After a Clause 6.5 determination of electricity dues, a consumer who has already been permitted to deposit interest in instalments subject to first paying the principal cannot obtain from the High Court a relaxation of that principal-deposit condition. Where the chart appended to the Clause 6.5 order shows that the provisional bill suffers from no error of law, the writ is not a fit case for interference. Any remaining dispute may be pursued by appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill

The Executive Engineer's Clause 6.5 determination, with instalment facility already granted for interest, was treated as the completed statutory resolution of the billing dispute; the Court declined to rewrite the principal-deposit condition in writ. ¶ 1

alternative-remedy-section-127-appeal

After refusing writ interference with the Clause 6.5 order, the Court left any remaining dispute to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — FULL APPELLATE REVIEW OF THE CLAUSE 6.5 DETERMINATION AND QUANTUM OF DUES

Liberty reserved to appeal under Section 127 of the Electricity Act, 2003. ¶ 1